

STATE OF NEW YORK

7465--B

2025-2026 Regular Sessions

IN ASSEMBLY

March 28, 2025

Introduced by M. of A. BUTTENSCHON, CUNNINGHAM, STERN, DeSTEFANO, GONZALEZ-ROJAS, BURDICK, KELLES -- read once and referred to the Committee on People with Disabilities -- recommitted to the Committee on People with Disabilities in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the mental hygiene law, in relation to the duties of the independent developmental disability ombudsperson program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. Section 33.28 of the mental hygiene law, as added by
2 section 1 of part KK of chapter 57 of the laws of 2023, is amended to
3 read as follows:
4 § 33.28 Independent developmental disability [~~ombudsman~~] ombudsperson
5 program.
6 (a) There is hereby established by the office for people with develop-
7 mental disabilities the independent developmental disability [~~ombudsman~~]
8 ombudsperson program for the purpose of assisting individuals with
9 developmental disabilities to ensure access by such individuals to
10 services and to preserve their rights.
11 (b) Such [~~ombudsman~~] ombudsperson program shall have the following
12 duties, including, but not limited to:
13 1. establishing a service delivery structure based in New York state
14 that includes a toll-free telephone hotline, an interactive website, and
15 availability of in-person, telephone and email access to ombudsperson
16 program staff or volunteers;
17 2. identifying, investigating, referring and resolving complaints that
18 are made by, or on behalf of individuals relative to access to services
19 provided by the office for people with developmental disabilities or

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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1 care coordination or other providers certified and/or authorized by the
2 office to provide services to people with developmental disabilities[~~7~~
3 ~~and access to initial and continuing intellectual and developmental~~
4 ~~disability services and supports~~];

5 3. providing assistance for navigating and completing processes, such
6 as paperwork and documentation, to access services provided by the
7 office for people with developmental disabilities or the care coordi-
8 nation provided by health homes serving individuals with developmental
9 disabilities to individuals or services provided by other providers,
10 and/or anyone seeking assistance on their behalf;

11 4. assisting individuals in filing and preparing appeals, and repres-
12 enting individuals in appeals and hearings concerning adverse benefit
13 determinations regarding services provided by the office for people with
14 developmental disabilities or health homes serving individuals with
15 developmental disabilities to individuals or services provided by other
16 providers;

17 5. collecting, tracking, and quantifying problems and inquiries
18 encountered by individuals; and

19 6. educating individuals on their rights and responsibilities with
20 respect to access to services provided by the office for people with
21 developmental disabilities and care coordination provided by health
22 homes serving individuals with developmental disabilities or services
23 provided by other providers.

24 (c) Notices and materials provided to individuals by the office for
25 people with developmental disabilities, providers of services, and the
26 health homes serving individuals with developmental disabilities shall
27 include the name, phone number and website address of the independent
28 developmental disability [~~ombudsman~~ ombudsperson] program established by
29 the office for people with developmental disabilities pursuant to this
30 section. [~~The phone number shall be available for forty hours every~~
31 ~~week.~~]

32 (d) Funds available for expenditure pursuant to this section for the
33 establishment of an independent developmental disability [~~ombudsman~~
34 ombudsperson] program may be allocated and distributed by the commis-
35 sioner of the office for people with developmental disabilities, subject to
36 the approval of the director of the budget, but only after the commis-
37 sioner of the office for people with developmental disabilities holds a
38 request for proposal process for the establishment of an independent
39 developmental disability [~~ombudsman~~ ombudsperson] program. Only domestic
40 not-for-profit corporations shall be eligible to submit proposals for
41 such program. Entities that currently receive funding from the office
42 for people with developmental disabilities to provide services to people
43 with developmental disabilities, or to operate care coordination organ-
44 izations, or that bill the Medicaid program for medical or health care
45 services, shall be excluded from consideration. The commissioner of the
46 office for people with developmental disabilities shall consider all
47 competitive proposals submitted through such request for proposal proc-
48 ess and shall determine which proposal submitted is appropriate for the
49 establishment of an independent developmental disability [~~ombudsman~~
50 ombudsperson] program. In making such determination, applicants who
51 demonstrate experience providing advocacy or assistance to people with
52 developmental disabilities, experience operating a call center, or expe-
53 rience tracking and reporting on case activities while protecting indi-
54 vidual confidentiality shall receive deference for the award.

55 (e) Annually, no later than October thirty-first, the ombudsperson
56 shall submit an annual report summarizing the work of the program and

1 make recommendations to address systemic issues identified during the
2 previous year. Such annual report shall be submitted to the governor,
3 the temporary president of the senate, the speaker of the assembly and
4 the relevant legislative committee chairs. The ombudsperson shall post
5 such report conspicuously on the website of the office for people with
6 developmental disabilities upon such submission to such officials.

7 § 2. This act shall take effect on the one hundred eightieth day after
8 it shall have become a law and shall apply to all policies and contracts
9 issued, renewed, modified, altered or amended on and after such date.